

MASTER SERVICES AGREEMENT

Date *

2023-10-12

This Master Services Agreement (this "**Agreement**") is made and entered into as of

(the "**Effective Date**") by and between Smart Support LLC, dba 'Octomaids' (the "**Company**"), a Washington Business Entity, having a principal place of business at 7202 N.E. Hwy 99, Suite 106-104, Vancouver, Washington, 98665, and

The Contractor *

Michael Hamberg Inc.

having a principal place of business at *

1257 NE 5th Ave Camas WA 98607

In consideration of the mutual covenants and agreements hereinafter set forth and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Company and the Contractor (hereinafter, collectively, the "**Parties**", or each, individually, a "**Party**") agree as follows:

1. Services

The Company engages the Contractor to provide the services specified in Schedule A hereto (the "**Services**").

2. Compensation and Expenses.**2.1 Fees.**

As the Contractor's sole compensation for the Services and rights granted under this Agreement, the Company shall pay the Contractor a fixed fee of sixty percent (60%) of every contract for Services with a Customer signed up through the Company (the "**Fees**"), payable biweekly with receipt by the Company of an invoice from the Contractor detailing and outlining their services provided for Company.

2.2 Expenses

The Contractor is solely responsible for any expenses or costs incurred by the Contractor in connection with the performance of the Services. The Company shall be under no obligation to reimburse the Contractor for any such expenses or costs. However, the Company does pay for Customer payment processing and all credit card fees associated with the processing.

2.3 Payment Terms.

The Contractor shall invoice the Company in a timely manner for all Fees and expenses due hereunder accompanied by documentation reasonably requested by the Company evidencing all charges. The Company will pay the full amount of each undisputed invoice on a biweekly basis following receipt thereof, except for any amounts that the Company disputes in good faith.

3. Representations and Warranties.

The Contractor represents and warrants that:

- (a) the Contractor will comply with all applicable laws, rules, and regulations in performing the Services;
- (b) the Services will be performed in compliance with generally accepted professional procedures and industry standards prevailing at the time the Services are performed;
- (c) all Services will meet any specifications and requirements set forth in this Agreement;
- (d) the Contractor has, and shall maintain in effect during the Term (as defined below) of this Agreement, all licenses, permits, qualifications, and approvals which are legally required for the Contractor to render the Services; and
- (e) none of the Services or Work Product (as defined below), and the Company's use thereof, infringe or will infringe any intellectual property right of any third party.

4. Relationship of the Parties.

The Contractor's relationship with the Company is that of an independent contractor and nothing in this Agreement is intended to, or shall be construed to, create a partnership, agency, joint venture, employment, or similar relationship. The Contractor will not be entitled to any benefits made available to the Company's employees. The Contractor is not authorized to make any representation, contract, or commitment on behalf of the Company unless specifically requested or authorized in writing to do so by the Company.

5. Intellectual Property Rights.

The Company is and will be the sole and exclusive owner of all right, title, and interest to all the results and proceeds of the Services performed under this Agreement, and all other ideas, proposals, inventions, products, designs, documentation, processes, techniques, algorithms, materials, and all other work product of any kind whatsoever, that the Contractor may create, prepare, produce, author, derive, edit, modify, conceive, or reduce to practice, alone or jointly with others, in connection with performing the Services, or that result from or that are related to the Services (collectively, the "**Work Product**"). The Contractor hereby irrevocably transfers and assigns to the Company, and agrees to irrevocably transfer and assign to the Company, all right, title, and interest in and to the Work Product, including all worldwide patent rights